

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Asselman	Team: Squad #04	CCRB Case #: 202205024	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/18/2022 10:35 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/18/2024	Precinct: 70		
Date/Time CV Reported Mon, 07/18/2022 11:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/01/2022 12:42 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Noah Elrowmeim	18849	967860	070 PCT
2. PO Jonathan Gomez	22992	972392	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Douglas Kautter	00000	935093	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Noah Elrowmeim	Abuse: Police Officer Noah Elrowmeim entered § 87(2)(b), in Brooklyn.	A . Within NYPD Guidelines
B . PO Jonathan Gomez	Abuse: Police Officer Jonathan Gomez entered § 87(2)(b), in Brooklyn.	B . Within NYPD Guidelines
C . PO Noah Elrowmeim	Abuse: Police Officer Noah Elrowmeim refused to provide his name to § 87(2)(b)	C . Unfounded

Case Summary

This complaint was filed by § 87(2)(b) at IAB on July 18, 2022, via telephone. The original log is 2022-17287. The CCRB received this complaint on August 1, 2022.

On July 18, 2022, at approximately 10:35 am, PO Noah Elrowmeim and PO Jonathan Gomez of the 70th Precinct responded to a 911 call at § 87(2)(b)'s apartment, located at § 87(2)(b) in Brooklyn. PO Gomez and PO Elrowmeim entered § 87(2)(b)'s apartment (**Allegations A and B: Abuse of Authority, Within NYPD Guidelines**). PO Elrowmeim refused to provide his name to § 87(2)(b) (**Allegation C: Abuse of Authority, Unfounded**).

The CCRB obtained Body-Worn Camera (BWC) footage of this incident (Board Review 01, 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Noah Elrowmeim entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Jonathan Gomez entered § 87(2)(b) in Brooklyn.

In his statement to CCRB, § 87(2)(b) said that July 18, 2022, “meant nothing to him” (Board Review 03). He was unable to recall the events that took place during his interaction with NYPD officers. Officers were inside his apartment, although he did not know who let them in. He did not recall any details of this interaction with officers, aside from requesting to speak to a supervisor, and that he had multiple interactions with NYPD officers regarding missing packages. One of these occasions, an officer lunged at him. § 87(2)(b) stated that he is unable to call certain details because of a stroke he suffered in the past.

§ 87(2)(b) who is § 87(2)(b) testified that PO Elrowmeim and PO Gomez responded to § 87(2)(b)'s apartment regarding missing packages (Board Review 04). She opened the door to § 87(2)(b)'s apartment and invited the officer inside to speak to § 87(2)(b). § 87(2)(b) also added that § 87(2)(b) refuses to take prescribed medication, which affects his memory and makes it difficult for him to remember events.

In BWC footage recorded by PO Elrowmeim, at 01:36, § 87(2)(b) opens the door to § 87(2)(b)'s apartment and greets PO Elrowmeim and PO Gomez (Board review 01, 02). She invites them inside, but PO Gomez asks her to have § 87(2)(b) meet them at the door. She responds that § 87(2)(b) is disabled. At 02:07 She invites the officers inside a second time, and they enter the apartment. PO Gomez introduces himself to § 87(2)(b). § 87(2)(b) appears to be on a phone call and says, “Two cops that wouldn’t identify themselves made their way into my apartment I’m trying to figure out whether they’re going to beat me.”

People v. Jackson, 105 A.D.3d 866 [2d Dept. 2013] states that officers may lawfully enter and search premises if given voluntary consent by an individual who “possesses the requisite degree of authority and control over the premises” (Board Review 05).

§ 87(2)(g)

It is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Abuse of Authority: Police Officer Noah Elrowmeim refused to provide his name to § 87(2)(b)

In his original IAB complaint, which § 87(2)(b) filed on July 18, 2022, § 87(2)(b) said he called 911 regarding an individual who was banging on his door and trespassing in his building. PO Gomez and PO Elrowmeim, who responded to this call, refused to call their supervisor. He asked PO Elrowmeim for his name repeatedly, but he did not provide it (Board Review 06).

While providing his statement to CCRB, he did not recall asking any officers for their names or shield numbers.

In PO Elrowmeim's BWC footage, while speaking to PO Gomez at 06:38, § 87(2)(b) points in PO Elrowmeim's direction and states that he would not give him his name. PO Gomez tells § 87(2)(b) that they both gave him their names and PO Elrowmeim states his own name. At 15:50 PO Elrowmeim spells his name out while § 87(2)(b) writes it on a sheet of paper.

The CCRB obtained PO Elrowmeim's department cellphone usage history for July 18, 2022. This history indicated that PO Elrowmeim placed two phone calls to a phone number consistent with the phone number § 87(2)(b) provided when he first filed this complaint (Board Review 07).

PO Elrowmeim testified that he did not recall what he and § 87(2)(b) discussed during the phone calls (Board Review 08). He did not have any recollection of placing calls to § 87(2)(b) before arriving at his apartment. At the end of this incident, PO Elrowmeim spelled his name out for § 87(2)(b) while he wrote it down.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four CCRB complaints and has been named as a victim in fifteen allegations (Board Review 09):
 - § 87(2)(b)
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- PO Gomez has been a member-of-service for one and this is the first CCRB complaint to which he has been a subject.
- PO Elrowmeim has been a member of service for three years and has been a subject in one CCRB complaint and one allegation. The investigation into complaint 202208139 is ongoing.

Mediation, Civil, and Criminal Histories

- CCRB did not offer mediation at the time of this complaint.
- As of February 22, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 11).

- § 87(2)(b) | §§ 86(1)(3)&(4) | § 87(2)(c)

Investigator: Sara Asselman Inv. Sara Asselman 02/15/2023

Squad Leader: Raquel Velasquez IM Raquel Velasquez 02/15/2023

Reviewer: _____